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Edible Food Donation Requirements

California's Senate Bill 1383 (SB 1383) requires Edible Food Generators to develop Edible Food Recovery Programs. As required by SB 1383, the City of Claremont has initiated the [Edible Food Recovery Ordinance](https://ecode360.com/43838620#43838846) (<https://ecode360.com/43838620#43838846>). This ordinance requires specific businesses to redirect their surplus edible food to food banks or food pantries instead of disposing of it in the trash.

What is Considered Edible Food?

Edible food is defined as food that is safe for human consumption regardless of appearance, age, freshness, grade, surplus, and more. This classification encompasses prepared foods, packaged foods, and produce, among other things. The primary objective of SB 1383 is to divert a greater quantity of edible food that would otherwise end up in landfills for human consumption.

All edible food must meet the food safety standards outlined in the [California Retail Food Code](https://www.cdph.ca.gov/Programs/CEH/DFDCS/Pages/FDBHSCodes.aspx) (<https://www.cdph.ca.gov/Programs/CEH/DFDCS/Pages/FDBHSCodes.aspx>). The Good Samaritan Donation Act of AB 1219 provides legal protection to food donors, shielding them from criminal and civil liability when donating food to non-profit or charitable entities in good faith and in adherence to standard safe food handling procedures.

What Businesses are Required to Donate Edible Food?

SB 1383 introduces regulations for two distinct categories of commercial businesses that produce edible food and mandates edible food recovery. Beginning January 1, 2022, Tier 1 generators were required to establish contracts or written agreements with food recovery organizations or services for the retrieval of surplus edible food. Beginning January 1, 2024, Tier 2 generators were subjected to the same requirement.

Tier 1 Commercial Edible Food Generators

- Supermarkets with annual gross sales exceeding \$2 million
- Grocery stores with a facility size of 10,000 square feet or larger
- Food service providers
- Food distributors
- Wholesale food vendors

Enforcement of edible food recovery regulations for Tier 2 businesses under SB 1383 commenced on January 1, 2022.

Tier 2 Commercial Edible Food Generators

- Restaurants with 250 or more seats or a facility size of 5,000 square feet or larger
- Hotels with on-site food facilities and 200 or more rooms
- Health facilities with on-site food facilities and 100 or more beds
- Large venues
- Large events
- State agencies with cafeterias featuring 250 or more seats or a cafeteria facility size of 5,000 square feet or larger
- Local education agency facilities with on-site food facilities

Enforcement of edible food recovery regulations for Tier 2 businesses under SB 1383 commenced on January 1, 2024.

How Businesses Can Comply

For Tier 1 and Tier 2 Businesses:

- Enter into contract with one or more Edible Food Recovery Organizations.
 - Refer to the list of local edible food recovery organizations below.
 - State agency CalRecycle has developed a Model Food Recovery and Donation Agreement: [Model Food Recovery Agreement](#) ^(PDF, 365KB) [\(/files/assets/public/v/1/community-services/documents/edible-food-donation-requirements/2021jan25model-edible-food-recovery-agreement-1.pdf\)](#).
- Donate the maximum amount of surplus edible food possible. Do not allow food to intentionally spoil.
- Maintain records of all types of food donated, including:
 - Quantity (in pounds)
 - Donation frequency
 - Contact information for the Food Recovery Organization(s).
 - These records will be subject to review per California law.
 - A sample donation form can be found here: [Sample Edible Food Tracking Form](#) ^(PDF, 57KB) [\(/files/assets/public/v/1/community-services/documents/edible-food-donation-requirements/edible-food-tracking-form-1.pdf\)](#).

Local Food Recovery Organizations

God Provides Ministry

284 E. Holt Avenue

Pomona, CA

(626) 200-0356

www.pomonafoodbank.org (<http://www.pomonafoodbank.org/>).

pomonavalleyfb@yahoo.com (<mailto:pomonavalleyfb@yahoo.com>).

Items accepted: Produce; Packaged nonperishable food; Meat, poultry, and fish products; Eggs, dairy, and dairy alternatives; Baked goods.

Will pick up donations and accept deliveries.

God's Pantry

250 E. Center Street

Pomona, CA

(425) 280-4063

www.gods-pantry.org (<http://www.gods-pantry.org/>).

info@godspantry.org (<mailto:info@godspantry.org>).

Chris Fink (909) 967-5555

Chris@gods-pantry.org (<mailto:Chris@gods-pantry.org>).

Items accepted: Produce; Packaged nonperishable food; Meat, poultry, and fish products; Eggs, dairy, and dairy alternatives; Baked goods.

Will pick up and accept deliveries.

Inland Valley Hope Partners

1753 N. Park Avenue

Pomona, CA

(626) 622-3806 ext. 204

www.inlandvalleyhopepartners.org (<http://www.inlandvalleyhopepartners.org/>).

info@inlandvalleyhopepartners.org (<mailto:info@inlandvalleyhopepartners.org>).

New Life Food Bank

275 E. Foothill Blvd.

Pomona, CA

(909) 593-5000

Pastor Zamar (909) 593-7070

www.newlifepomona.com/foodbank (<http://www.newlifepomona.com/foodbank>).

office@newlifepomona.com (<mailto:office@newlifepomona.com>).

zamar@newlifepomona.com (<mailto:zamar@newlifepomona.com>).

Items accepted: Produce; Packaged nonperishable food; Meat, poultry, and fish products; Eggs, dairy, and dairy alternatives; Baked goods.

Will pick up donations and accept deliveries.

Elim Community Pantry

550 S. Hollenbeck Ave

Covina, CA

(626) 915-5300

www.elimpantry.org (<http://www.elimpantry.org/>).

info@elimpantry.org (<mailto:info@elimpantry.org>).

Items accepted: Produce; Packaged nonperishable food; Meat, poultry, and fish products; Eggs, dairy, and dairy alternatives; Baked goods.

Will pick up donations and accept deliveries.

Project 29:11

418 N. Second Ave.

Covina, CA 91723

(626) 634-5319

www.project2911.net (<http://www.project2911.net/>).

info@p2911@gmail.com (<mailto:info@p2911@gmail.com>).

Items accepted: Produce; Packaged nonperishable food; Meat, poultry, and fish products; Eggs, dairy, and dairy alternatives; Baked goods.

Will pick up donations and accept deliveries.

